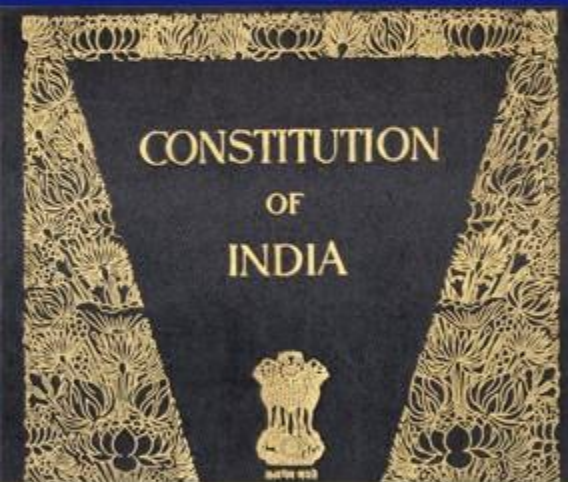


INDIAN POLITY



MODULE - 53

THE PRESIDENT

- **OFFICE & HIS IMPEACHMENT**

QUALIFICATIONS, OATH AND CONDITIONS**1****QUALIFICATIONS FOR ELECTION AS PRESIDENT**

A sitting President or Vice-President of the Union, the Governor of any state and a minister of the Union or any state is not deemed to hold any office of profit and hence qualified as a presidential candidate.

1

He should be a citizen of India.

2

He should have completed 35 years of age.

3

He should be qualified for election as a member of the Lok Sabha.

4

He should not hold any office of profit under the Union government or any state government or any local authority or any other public authority.

QUALIFICATIONS, OATH AND CONDITIONS

2

OATH OR AFFIRMATION BY THE PRESIDENT

Before entering upon his office, the President has to make and subscribe to an oath or affirmation. In his oath, the President swears:

WORD OF CAUTION:

Only the President and the Governor take an oath to defend the Constitution



1

- To faithfully execute the office
- To preserve, protect and defend the Constitution and the law
- To devote himself to the service and well-being of the people of India.

QUESTION

Who among the following take an oath of defending the Indian Constitution?

- 1) President
- 2) Judges of Supreme Court and High Court
- 3) The Governor
- 4) Prime Minister of India

Which of the above are correct?

- | | |
|---------------|------------------|
| a) 1 & 2 only | b) 1, 2 & 3 only |
| c) 1 & 3 only | d) 1, 3 & 4 only |



Anandiben Patel swearing as the Governor of MP



EXPLANATION

- Only the President and Governor of India take oath to defend the Constitution of India
- On the other hand, the judges of High Court, Supreme Court and the Prime Minister take the oath swearing by “to bear true faith and allegiance to the Constitution of India”.

QUALIFICATIONS, OATH AND CONDITIONS

2

OATH OR AFFIRMATION BY THE PRESIDENT



*Oath of office administered by
Chief Justice of India*

2

The oath of office to the President is administered by the **Chief Justice of India** and in his absence, the **senior most judge** of the Supreme Court available.

3

Any other person acting as President or discharging the functions of the President also undertakes the similar oath or affirmation.

QUALIFICATIONS, OATH AND CONDITIONS

3

CONDITIONS OF PRESIDENT'S OFFICE

The Constitution lays down the following conditions of the President's office:



PARLIAMENT OF INDIA

1

He should not be a member of either House of Parliament or a House of the state legislature.

2

If any such person is elected as President, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as President.

3

He should not hold any other office of profit.

QUALIFICATIONS, OATH AND CONDITIONS

3

CONDITIONS OF PRESIDENT'S OFFICE



Rashtrapathi Bhavan

4

He is entitled, without payment of rent, to the use of his official residence (the Rastrapathi Bhavan).

5

He is entitled to such emoluments, allowances and privileges as may be determined by Parliament.

6

His emoluments and allowances cannot be diminished during his term of office.

QUALIFICATIONS, OATH AND CONDITIONS

3

CONDITIONS OF PRESIDENT'S OFFICE



7 The President is entitled to a number of privileges and immunities.

8 He enjoys personal immunity from legal liability for his official acts.

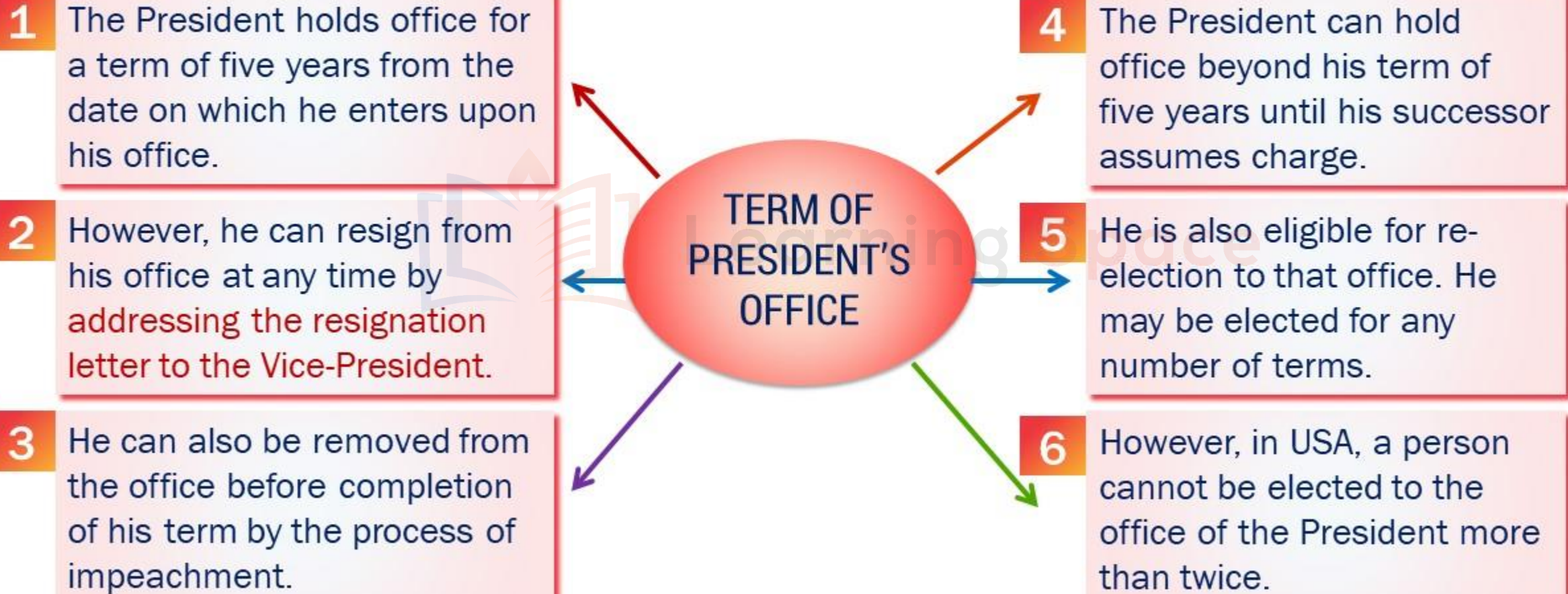
9 During his term of office, he is immune from any criminal proceedings, even in respect of his personal acts.

10 He cannot be arrested or imprisoned. However, after giving two months' notice, civil proceedings can be instituted against him during his term of office in respect of his personal acts.

TERM, IMPEACHMENT AND VACANCY

1

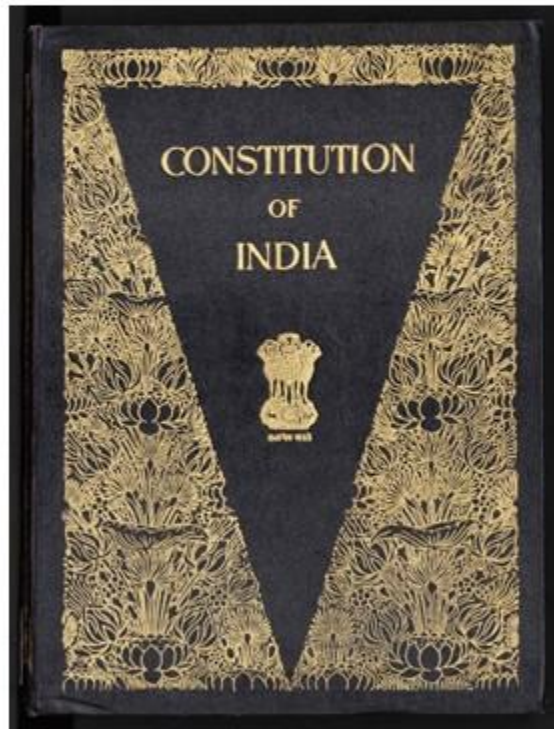
TERM OF PRESIDENT'S OFFICE



TERM, IMPEACHMENT AND VACANCY

2

IMPEACHMENT OF PRESIDENT

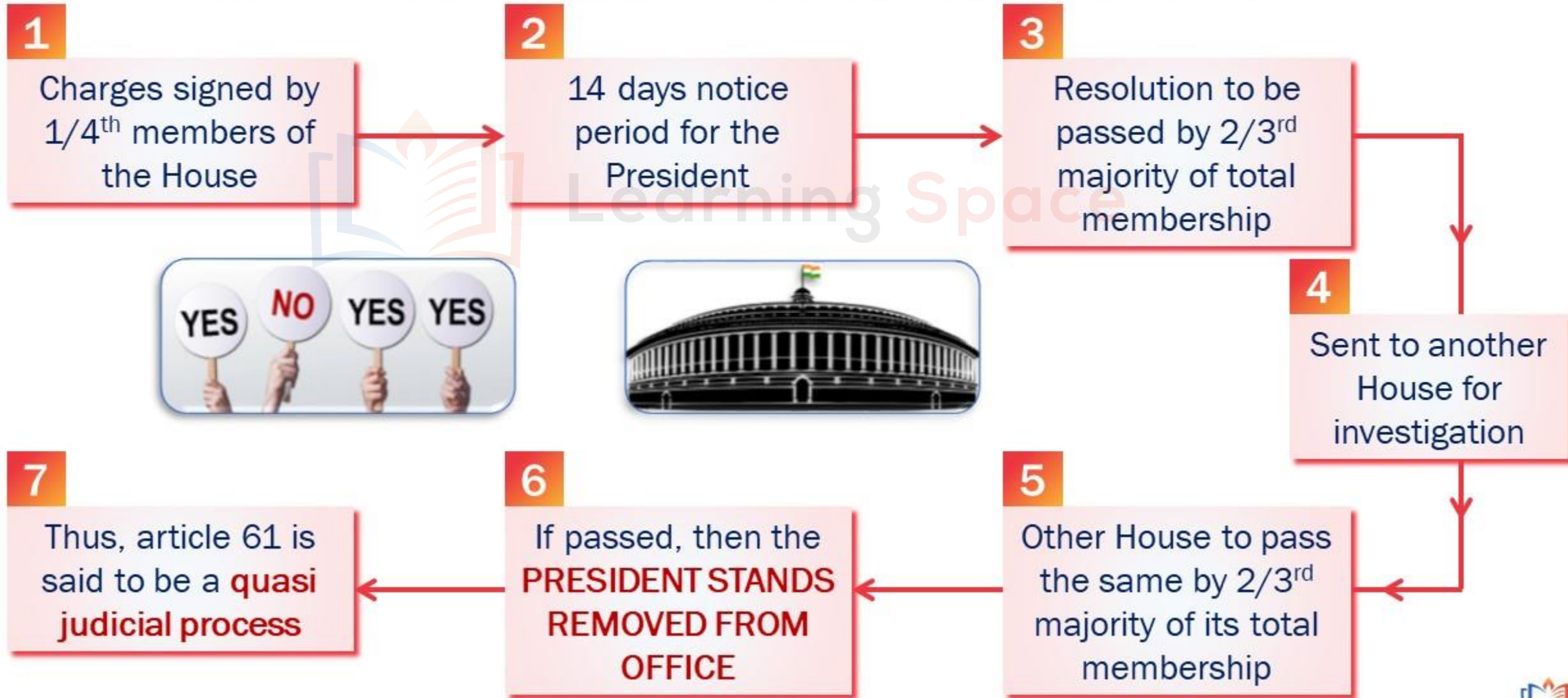


- 1 The President can be removed from office by a **process of impeachment** for 'violation of the Constitution'.
- 2 However, the Constitution does not define the meaning of the phrase 'violation of the Constitution'.
- 3 The impeachment charges can be initiated by either House of Parliament.

INDIAN PRESIDENT

TERM, IMPEACHMENT AND VACANCY

HOW IS IMPEACHMENT PROCEDURE CARRIED OUT?



INDIAN PRESIDENT

TERM, IMPEACHMENT AND VACANCY

2

IMPEACHMENT OF PRESIDENT

HOW IS IMPEACHMENT PROCEDURE CARRIED OUT?

- 1 These charges should be signed by one-fourth members of the House (that framed the charges), and a 14 days' notice should be given to the President.
- 2 After the impeachment resolution is passed by a majority of two-thirds of the total membership of that House, it is sent to the other House, which should investigate the charges.
- 3 The President has the right to appear and to be represented at such investigation.
- 4 If the other House also sustains the charges and passes the impeachment resolution by a majority of two-thirds of the total membership, then the President stands removed from his office from the date on which the resolution is so passed.

Thus, an impeachment is a quasi-judicial procedure in the Parliament.

TERM, IMPEACHMENT AND VACANCY

2

IMPEACHMENT OF PRESIDENT



Nominated members can participate in impeachment process

5

In this context, two things should be noted:

- The nominated members of either House of Parliament can participate in the impeachment of the President though they do not participate in his election.
- The elected members of the legislative assemblies of states and the Union Territories of Delhi and Puducherry do not participate in the impeachment of the President though they participate in his election.

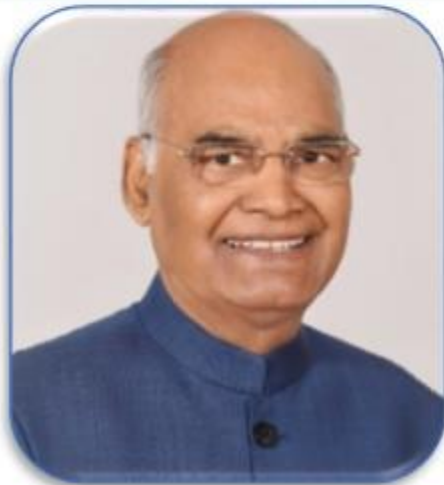
6

No President has so far been impeached.

TERM, IMPEACHMENT AND VACANCY

3

VACANCY IN THE PRESIDENT'S OFFICE



1

A vacancy in the President's office can occur in any of the following ways:

1. On the expiry of his tenure of five years.
2. By his resignation.
3. On his removal by the process of impeachment.
4. By his death
5. Otherwise, for example, when he becomes disqualified to hold office or when his election is declared void.

TERM, IMPEACHMENT AND VACANCY

3

VACANCY IN THE PRESIDENT'S OFFICE

- 2 When the vacancy is going to be caused by *the expiration of the term* of the sitting President, an election to fill the vacancy must be held before the expiration of the term.
- 3 In case of any delay in conducting the election of new President by any reason, the outgoing President continues to hold office (beyond his term of 5 years) until his successor assumes charge.
- 4 This is provided by the Constitution in order to *prevent an 'interregnum'*.
- 5 In this situation, the Vice-President does not get the opportunity to act as President or to discharge the functions of the President.
- 6 If the *office falls vacant by resignation, removal, death or otherwise*, then election to fill the vacancy should be held within six months from the date of the occurrence of such a vacancy.
- 7 The newly-elected President remains in office for a full term of five years from the date he assumes charge of his office.

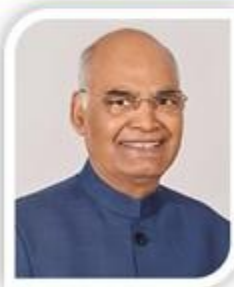
TERM, IMPEACHMENT AND VACANCY

3

VACANCY IN THE PRESIDENT'S OFFICE

8 When a vacancy occurs in the office of the President due to his resignation, removal, death or otherwise, **the Vice-President acts as the President** until a new President is elected.

PRESIDENT



VICE-PRESIDENT



CJI



9 Further, when the sitting President is unable to discharge his functions due to absence, illness or any other cause, the Vice-President discharges his functions until the President resumes his office.

10 In case the office of Vice-President is vacant, **the Chief Justice of India** (or if his office is also vacant, the senior most judge of the Supreme Court available) acts as the President or discharges the functions of the President.

TERM, IMPEACHMENT AND VACANCY

3

VACANCY IN THE PRESIDENT'S OFFICE



***Rashtrapathi Bhavan and President's bodyguard
are some of the Presidential amenities***

11

When any person, i.e., Vice-President, Chief Justice of India, or the senior most judge of the Supreme Court is acting as the President or discharging the functions of the President, he enjoys all the powers and immunities of the President and **is entitled to such emoluments, allowances and privileges as are determined by the Parliament.**

QUESTION

With reference to the term “Office of Profit”, which of the following statements are correct?

- 1) The term Office of Profit has not been defined in the Constitution.
- 2) A law maker holding a Government position cannot be disqualified, if the office has been made immune from disqualification by a suitable law.
- 3) The term Office of Profit is an Indian innovation and it can be interpreted on a case-by-case basis for disqualification of MPs.

Which of the above is / are correct?

- | | |
|---------------|-----------------|
| a) 1 only | b) 1 & 3 only |
| c) 1 & 2 only | d) All 1, 2 & 3 |

WHAT DOES CONSTITUTION SAY ABOUT OFFICE OF PROFIT?

- 1** The term “Office of Profit” has nowhere been described or defined in the Constitution of India.
- 2** Articles 102 and 191 of the Constitution give effect to the Office of Profit. However, even these do not define what is meant by an Office of Profit.
- 3** The concept of “Office of Profit” has evolved in England and has been found in the English Act of Settlement, 1701. Therefore, this is not an Indian innovation.
- 4** The validity of disqualification of an MP is decided on a case-by-case basis and it is decided by the Joint Committee on Office of Profit that consists of 10 members from Lok Sabha and 5 members from the Rajya Sabha.
- 5** The Committee undertakes scrutiny of various Government appointed officers to determine if it falls under an Office of Profit.

HOW DO YOU DEFINE OFFICE OF PROFIT?

- 1 An office of profit means a position that brings to the person holding it some financial gain, or advantage, or benefit.
- 2 It refers to a post under central/state government which yields salaries, perks and other benefits.
- 3 The above statements are the “interpretations” of Office of Profit in the Constitution and by the Judiciary.
- 4 Four broad principles have been evolved for determining whether an office attracts Constitutional disqualification.
 - Whether the Government exercises control over appointment, removal, and performance of the functions of the office.
 - Whether the office has any remuneration attached to it.
 - Whether the body in which the office is held has Government powers- releasing money, allotment of land, granting license etc.
 - Whether the office enables the holder to influence by way of patronage.

PREVIOUS EXAMPLES OF DISQUALIFICATION OF MPs ON THE BASIS OF OFFICE OF PROFIT

- 1 Jaya Bachchan -she is the member of the Rajya Sabha and she was disqualified for being the **Chairperson of the Uttar Pradesh Film Development Council.**



- 2 Sonia Gandhi -As the sword of disqualification laid upon her, she quitted her Lok Sabha seat and the reason of Office of Profit was that she also held the **post of the Chairperson of National Advisory Council**, an advisory body under Government of India.



QUESTION

Consider the following statements regarding the Office of Profit

- 1) The term Office of Profit has been given effect through Articles 102 and 191 of the Constitution.
- 2) The idea of the Office of Profit is to limit the control of executive on the legislature and ensure the independence of legislature.
- 3) Parliament (Prevention of Disqualification) Act of 1959, declared some offices of profit under the Government which does not disqualify its holder for being the Members of Parliament.

Which of the above is / are correct?

- | | |
|---------------|-----------------|
| a) 1 only | b) 2 & 3 only |
| c) 1 & 2 only | d) All 1, 2 & 3 |

QUESTION

With reference to the term “Office of Profit”, which of the following statements are correct?

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- | | |
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| a) 1 only | b) 1 & 3 only |
| c) 1 & 2 only | d) All 1, 2 & 3 |

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